

LOCAL 2627 ELECTION COMMITTEE REPORT ON ELECTION PROTEST

For August 5, 2026 meeting

This is the Local 2627 Election Committee's report on the protest that it received of the conduct of the mail-ballot election for the Local 2627 Executive Board and for Delegates to District Council 37.

On May 19, 2026, Local 2627 held a meeting at which nominations were open for officers, Executive Board, a Trustee, Delegates to DC37, Delegates to the Central Labor Council, and AFSCME Convention Delegates. Nominations were also submitted online in advance of the meeting.

The only contested positions were the four Executive Board positions and the five Delegates to DC37. A mail ballot election for those positions was administered by the American Arbitration Association.

At a Local 2627 membership meeting on June 30, 2026, the Election Committee made its report stating the results of the ballot count. The Election Committee's report was approved at that meeting by the Local 2627 membership. (That report is attached.)

On July 2, 2026, a protest concerning the conduct of the election was timely submitted to the Election Committee by candidate Sumiko Gilchrist. The protest alleged that an email list of various members was improperly used for the purpose of campaigning in support of Executive Board candidate Jordan Pecora and Delegate candidate Michael Folan, who were each elected to their respective offices pursuant to the results of the mail-ballot count.

The key question in addressing this protest is whether the use of the email list in support of Mr. Pecora's and Mr. Folan's campaigns violated the AFSCME Constitution's Election Code, Appendix D, specifically Section 1, paragraph A, which prohibits the use of any union or employer funds or resources "to support the candidacy of any member for any elected office" within AFSCME or any of its subordinate bodies.

On July 15, 2026, the Local 2627 Election Committee hosted a videoconference giving all interested parties an opportunity to be heard regarding the election protest. Ms. Gilchrist and a second candidate, Renetta English, spoke in support of the protest.

At the videoconference, Mr. Folan said that his slate sent out emails to members as part of its campaign.

His slate paid DC37 to send out a single email blast to all of Local 2627's members, pursuant to a candidate's right under the AFSCME Constitution to a single mailing to members; that email blast is not the subject of the protest.

Separately, the slate also sent its own emails to its own separate email list; those emails and that email list are the subject of this protest.

Mr. Folan said that the email list that was used to send messages in support of his and Mr. Pecora's candidacies consisted of fewer than 200 member email addresses. He said that he and his slate had built this email list over time through canvassing and direct member-to-member contact. He said that union or employer resources were not used in the compiling of the list.

No evidence has been presented to the Election Committee that rebuts Mr. Folan's statements. The limited number of email addresses on this email list supports his assertion that union and employer resources list were not used to compile this list.

The protestors stated that some individuals who received these emails reported to them that that they had not given out their email addresses. But even if some email addresses were obtained without the prior permission of recipients, that would not violate the AFSCME constitution, as long as employer and union resources were not used.

No evidence has been presented to the Election Committee demonstrating that employer and union resources were used to compile this email list.

At the July 15 videoconference, the protestors raised additional concerns about the content of the campaign emails that were sent to this email list, specifically over the use of a picture of a ballot with votes case for Mr. Folan and Mr. Pecora as an illustration of how to vote for them.

However, encouraging members to vote for candidates is part of campaigning and is not violative of the AFSCME constitution.

For these reasons, the Election Committee denies the protest. It finds that the creation and the use of the email list did not violate the AFSCME constitution and its election rules.